

26NNCV01720 26NNCV01720

County: los-angeles

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Case Number: 26NNCV01720 Hearing Date: August 14, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION to Stay Proceedings

Hearing Date: 8/14/26

CASE NO.: 26NNCV01720

CASE NAME: Othon, et al. v. Chung Lai, et al.

Moving Party: Defendants Yueh Chung Lai and Li-ru Chang Lai

Responding Party: Plaintiffs Patricia Othon, Ricardo Othon, Richard Othon, Angel Amaral, and Robert Amaral

Notice: Sufficient

Ruling: DENY

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is a real property dispute. Prior to the instant action, plaintiffs Patricia Othon, Ricardo Othon, Richard Othon, Angel Amaral, and Robert Amaral (Plaintiffs) filed a lawsuit on August 6, 2025, in the Glendale Courthouse (Lawsuit #1) against defendants Yueh Chung Lai and Li-ru Chang Lai (Defendants). (Ip Decl., ¶ 3.) On February 2, 2026, the Court in Lawsuit #1 awarded Defendants attorney's fees in the amount of \$9,517.70. (Ip Decl., ¶ 6.) That lawsuit was voluntarily dismissed by Plaintiffs on March 12, 2026.

On March 10, 2026, Plaintiffs filed the operative Complaint in this action against Defendants based on the same operative set of facts (Lawsuit #2).

On June 22, 2026, Defendants filed the instant motion to stay proceedings pending satisfaction of the February 2 court-ordered fee award. On August 3, 2026, Plaintiffs filed an opposition. On August 7, 2026, Defendants filed a reply.

LEGAL STANDARD

"[A] court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice." (OTO, L.L.C. v. Kho, (2019) 8 Cal.5th 111, 141 [citing People v. Bell, (1984) 159 Cal.App.3d 323, 329.]) "[T]he power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants." (OTO, L.L.C., supra, 8 Cal.5th at p. 141 [quoting Landis v. North American Co., (1936) 299 U.S. 248, 254].)

DISCUSSION

Defendants seek

an order staying the instant action until Plaintiffs pay attorney's fees pursuant to a February 2, 2026, Court Order from Lawsuit #1 prior to its voluntary dismissal. (Mot., p. 2.) Defendants argue that Plaintiffs should not be permitted to seek affirmative relief in this action, based on the same operative facts from Lawsuit #1, while refusing to comply with a court order from that action. (Mot., p. 11.) Further, Defendants argue that the strategic voluntary dismissal did not extinguish Plaintiffs' fee obligation. (Mot., p. 10.) Defendants argue that they will suffer oppression or hardship if the action is not stayed because they are being forced to incur additional attorney's fees in Lawsuit #2 to defend nearly identical claims while Plaintiffs have not paid fees due in Lawsuit #1. (Mot., p. 12.)

Plaintiffs

concede that they voluntarily dismissed Lawsuit #1 for tactical reasons in order to add a cause of action and avoid further delays and legal challenges from Defendants. (Opp., p. 3.) Plaintiffs argue that Defendants do not cite any recent authority which authorizes a trial court to stay one lawsuit because the same Plaintiffs has not paid a prior judgement obtained by the same defendant in another action. (Ibid.) Further, Plaintiffs argue that they have not tried to prevent collection of the monetary judgment in Lawsuit #1 and Defendants have not shown any oppression or hardship due to their inability to collect this judgment. (Opp., pp. 4-5.)

In reply, Defendants

argue that under *Weile v. Sturtevant* the Court has the ability to stay a case where a party refuses to satisfy a monetary obligation from related prior litigation. (Reply, p. 3.) Defendants reiterate that they will face oppression and hardship because Plaintiff's non-payment is not merely non-payment but one act in a series of oppressive acts by Plaintiff including evading safe-harbor notice, sanctions, and recording *lis pendens* without leave of court. (Reply, pp. 4-5.)

Defendants' own

cited case law states that the power to stay should not be exercised in every case where costs have not been paid, but only where the facts show oppression and hardship. (*Erllich v. Superior Court of Los Angeles County* (1965) 63 Cal.2d 551, 557.) Here, Defendants have not demonstrated how Plaintiffs' delay in paying attorney's fees from Lawsuit #1 impacts this action requiring a stay. While Defendants have alleged misconduct on the part of Plaintiffs, Defendants have not shown how the delay in payment of fees from Lawsuit #1 has caused

oppression and hardship requiring a stay of the action.

Accordingly, the motion to stay proceedings is DENIED.

CONCLUSION

AND ORDER

Defendants' Motion
to Stay Action is DENIED.

MOVING PARTY

shall
provide notice.